



Urgent intervention required

5 messages

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>

Thu, 04 Dec 2025 at 12:21

Dear Executive Leadership,

This correspondence serves as my final and good-faith attempt to resolve, internally and without escalation, the severe and ongoing harm I have been subjected to as a direct result of the company's repeated institutional failures.

Over the past months, I have experienced serious and documented misconduct, including:

1. Unlawful salary deductions exceeding 40% of my monthly income without my consent or consultation. This during a motivated mental health admission, awaiting a bed informed by the HRBP that the deduction was taken on the principle of no work no pay which did not require consultation.
2. Continuous intimidation, retaliation, and victimisation by my direct manager despite a lodged grievance. After a formal request to be temporary removal from her team. No action.
3. Awaiting feedback from manager as discrepancies found in up to 20% reduction in some cases of my monthly actual performance metrics that led to poor outcomes even missed opportunities in performance bonuses.
4. Prolonged silence and inaction from HR and senior leadership and union despite formal complaints. Currently +30days to date no response.

These actions have caused significant financial strain, forced me into a cycle of unexpected debt which i am struggling to manage, and resulted in severe psychological distress. My capacity to work in an environment that continues to permit such conduct has reached its limit.

Given the seriousness of these failures, I am formally requesting the restorative measures:

1. Paid Recuperation Leave & Guaranteed Reintegration

A period of fully paid special leave, allowing adequate time for psychological recovery.

Upon return, a permanent and immediate transfer to a new department.

2. Financial Settlement Determined by Risk & Compliance

I request a comprehensive financial settlement, independently assessed by the Head of Risk & Compliance, covering:

Financial losses caused by the unlawful deduction.

Debt incurred as a direct result of these actions.

Compensation for emotional distress, harassment, and institutional negligence.

The company's full legal exposure for:

Unfair labour practice

Discrimination

Failure to provide a safe working environment

Reputational and operational risks should the matter escalate externally.

3. Institutional Commitments

A written, irrevocable guarantee of no retaliation, present or future.

Next Steps

I am willing to meet with this leadership group and a neutral mediator within 14 days from date 04 December 2025.

If a signed agreement in principle is not provided by 14 working days, I will immediately proceed with the following simultaneous actions: As I feel I have exhausted all avenues this far to have the incidents resolved and this is my final resort.

1. File cases with the CCMA for unfair labour practices, and discrimination.
2. Lodge a formal complaint with the Department of Employment and Labour regarding the unlawful salary deduction.

3. Submit a complaint to the South African Human Rights Commission.

I am really at my breaking point now no motivation to come to work.

All evidence is already compiled and ready for submission.

I trust that the company will choose a constructive, internal resolution over a protracted and public legal dispute. I await your urgent response.

Kind regards,

Wilbur Matthee

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mailto:Meds_disclaimer@medscheme.co.za .

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za> Thu, 04 Dec 2025 at 12:30
To: Gerald Van Wyk <Gerald.VanWyk@afrocentrichealth.com>, Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>, Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>, Andrew Schwulst <Andrew.Schwulst@medscheme.co.za>, Aklaaq Mahmood <aklaaqm@afrocentrichealth.com>
Cc: wilburmat@gmail.com <wilburmat@gmail.com>

[Quoted text hidden]

Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw,Psych,Comm))

Case Manager: GEMS Active Disease Risk Management

- +27 12 466 1332
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If you would prefer, the disclaimer can be emailed to you by clicking:
mailto:Meds_disclaimer@medscheme.co.za .

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From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Mapule Mashele <Mapule.Mashele@medscheme.co.za>
Cc:
Bcc:
Date: Fri, 16 May 2025 12:37:35 +0000
Subject: Emailing Wilbur Matthee - letter to employer.pdf

Dear Mapule,

Please find letter from my treating Dr attached as requested for further information feel free to speak to my Dr directly via details provided or speak to me if you require additional information.

Best regards



Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw,Psych,Comm))

Care manager: GEMS Active Disease Risk Management

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From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>, Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>, Thando Mandondo <ThandoM@medscheme.co.za>

Cc:

Bcc:

Date: Thu, 25 Sep 2025 14:07:42 +0000

Subject: Formal Complaint: Handling of Harassment and Discrimination Case

Dear Cheryl, and team

I am writing to raise a serious concern regarding how my recent complaint of sexual orientation discrimination and harassment has been managed.

After I reported this matter, I was informed that I should have a one-on-one meeting with the individual I reported, and that she would then provide feedback to her manager. I believe this approach is inappropriate and does not align with the principles of impartiality, confidentiality, or protection from retaliation, which are essential when dealing with sensitive cases of discrimination and harassment.

Key Concerns with Current Process

Meeting privately with the accused places me in a vulnerable position and creates the risk of further harassment or intimidation.

Having the accused "report back" on the outcome of the meeting undermines impartiality and fairness in the process.

Forwarding my report directly to the accused without first ensuring neutral oversight compromises confidentiality and objectivity.

Specific Incident of Sexual Orientation Discrimination and Harassment

On 23 September 2025, my manager deliberately posted in our work teams group a version of my name from "Wilbur" to "Wilma," clearly referencing a female name, knowing that I am gay.

This was not a typo or accidental error, but a deliberate act intended to mock and embarrass me.

The post was made after working hours and immediately before the Heritage Day public holiday on 24 September 2025.

The manager then took two consecutive days off on 25 and 26 September 2025, ensuring that I could not address or respond to the issue immediately. She is only returning on Monday.

This action caused me significant upset, humiliation, and distress, and publicly undermined my dignity and identity.

The post also affected many of my colleagues, who expressed disgust and concern over my manager's deliberate actions.

As a result of this incident, I found myself unable to focus or be productive at work. I requested from my manager's manager if I could leave the office for the day to manage my mental health. I was referred to another team leader, who informed me that my manager had instructed that if I leave, she will log it as a half-day unpaid leave, despite my willingness to work the two hours back to support my mental health. When I objected, the team leader told me I should consult with my manager on Monday.

This clearly demonstrates how the manager's deliberate actions directly impacted my ability to perform my work, caused undue stress, and created an environment that was hostile to my mental health.

Under South African law, this constitutes sexual orientation discrimination and harassment, violating both company policy and the legal protections afforded under the Employment Equity Act 55 of 1998 and the Protection from Harassment Act 17 of 2011.

Inconsistent Application of Disciplinary Policy

Our company's disciplinary policy clearly states that any form of harassment warrants dismissal.

At a minimum, best practice requires that the accused be suspended on full pay pending investigation.

Despite this, the manager I reported has been allowed to continue in her role, while I remain in a compromising position.

This situation suggests:

The company is safeguarding the accused instead of applying its own policy consistently.

I remain exposed to further harassment, intimidation, or retaliation.

The credibility of the disciplinary process and grievance procedures is being undermined.

Requests and Expectations

I respectfully request that:

1. This matter be handled by a neutral HR representative or independent investigator, rather than the individual I reported.
2. I not be required to meet privately with the accused.
3. The manager be suspended pending investigation, in accordance with company policy.
4. The process be conducted in a way that ensures impartiality, confidentiality, and protection from retaliation.
5. I be immediately removed from this manager's team to prevent further exposure to harassment or a hostile work environment.

Legal Reminder

Under the Employment Equity Act 55 of 1998, harassment on the basis of sexual orientation constitutes unfair discrimination.

The Labour Relations Act 66 of 1995 requires fair labour practices.

The Protection from Harassment Act 17 of 2011 safeguards against conduct that could reasonably cause harm or distress.

Please confirm in writing how the company intends to proceed to ensure this complaint is managed fairly, lawfully, and in compliance with company policy and South African labour legislation.

If the matter is not addressed appropriately, I may have no option but to escalate this complaint to the CCMA or other relevant authorities.

Thank you for your urgent attention to this matter.

Sincerely,

Wilbur Matthee

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From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Cc:
Bcc:
Date: Tue, 11 Nov 2025 15:14:55 +0000
Subject: July 2025 Salary dispute, No staggering, over 40%

Dear Cheryl-D,

I am writing to formally dispute the deductions from my salary for July 2025. My usual earnings amount to **R36,588.81**, with a cost to company of **R42,796.13**. However, I received a net pay of **R15,679.29** after deductions totalling **R14,811.77** for unpaid leave and **R6,097.75** for other items.

These deductions were applied after I exhausted my sick and annual leave due to a mental health admission. During a one-on-one meeting with Senior Manager Mapule, I became emotional while reporting a statement from my manager that the company "does not allow staggering of payments as it is not a loan company" and that the full amount would be deducted at once.

Additionally, I informed Mapule that my manager also stated I “would not feel the missing chunk in my salary because I receive online deliveries weekly.” This comment was inappropriate and irrelevant to my financial situation and contractual rights. Mapule assured me that she would apply for **special leave** to assist, but despite this assurance, the deduction of over 40% occurred without consultation or written consent as per **Absenteeism, Ill Health, Disability & Incapacity Policy**.

I also raised this matter with my union representative, Thando Mandondo, who confirmed that such deductions without consent are **illegal under Section 34 of the Basic Conditions of Employment Act (BCEA)**.

The financial impact has been severe, forcing me to incur additional debt and prolonging my recovery from both emotional and financial hardship.

I kindly request:

1. A detailed breakdown and legal basis for these deductions.
2. Steps to rectify this matter, including reimbursement.

Please treat this matter as urgent.

Thank you for your attention and assistance.

Kind regards,



Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw,Psych,Comm))

Case Manager: GEMS Active Disease Risk Management

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From: Mapule Mashale <Mapule.Mashale@medscheme.co.za>
To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>, Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>, Tebogo Dikobe <Tebogo.Dikobe@afrocentrichealth.com>, Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Thando Mandondo <ThandoM@medscheme.co.za>
Bcc:
Date: Wed, 1 Oct 2025 11:28:06 +0000
Subject: RE: Follow-Up on Formal Complaint and Meeting Outcome

Dear Wilbur,

I would like to take this moment to thank you once again for bringing this issue to our attention and, most importantly, for your willingness to engage and resolve this amicably.

@HC Team, I have engaged with both Wilbur and Mary-Anne on the complaint raised. Mary-Anne has confirmed that the incorrect spelling of Wilbur's name in the Teams chat was a typo on her part, which she regretted and has acknowledged the seriousness of. She has apologised to Wilbur, and the apology has been accepted. The issue is now considered resolved, and Mary-Anne has committed to being extra careful in the future.

Furthermore, we have agreed that the unpaid half-day leave logged for the 25th of September on Wilbur's behalf will be cancelled – Mary Anne will action and reach out to HC if she needs any support.

Wilbur has confirmed that there have been no prior issues with Mary-Anne that suggested any harassment based on sexual orientation and that this was a first occurrence. He further expressed that he does not wish to be removed from Mary-Anne's reporting line, as they work well together.

Next Steps:

- We will continue to monitor the working relationship to ensure there are no further concerns.
- Wilbur will continue to be in Mary Annes hierarchy – no changes to the reporting lines will be made.

This matter is now closed, but should any similar issues arise in future, they will be addressed promptly in line with the Prevention and Elimination of Harassment Policy.

Kind Regards

Mapule

Thank you again, Wilbur, for raising your concern in good faith and working with us towards a constructive resolution.

From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Sent: Wednesday, October 1, 2025 11:09 AM
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Thando Mandondo <ThandoM@medscheme.co.za>; Tebogo Dikobe <Tebogo.Dikobe@afrocentrichealth.com>; Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>; Mapule Mashele <Mapule.Mashele@medscheme.co.za>
Subject: Follow-Up on Formal Complaint and Meeting Outcome

Dear [Chery-DI/Team/Investigation Team],

I would like to provide a formal update following my meeting with the investigation officer, Senior Manager Ms. Mapule Mashele.

During our discussion, we acknowledged that while errors can occur, there are also instances where actions are deliberate. After reviewing all relevant evidence and context, we navigated toward the latter and reached a shared understanding of the seriousness of the incident.

As a constructive step forward, I have decided to speak directly with Mary-Ann in the presence of Ms. Mashele to express how the situation truly affected me and to seek a way to make amends.

I would like to sincerely thank the team for your swift response to my formal complaint, and for the support, professionalism, and guidance you provided throughout the reporting process.

Kind regards,



Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw,Psych,Comm))

Care coordinator: GEMS Active Disease Risk Management

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----- Forwarded message -----
From: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>
To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Cc: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>
Bcc:
Date: Wed, 7 May 2025 14:17:32 +0000
Subject: RE: Regarding the Unpaid Leave Policy

Good day Wilbur

I am applying and following the Absence Management Policy as discussed and as we shared the screen together today during our meeting.

I do hear you and have tried to assist you in every way possible up to this point since you have returned after being sick.

We have explored reasonable accommodations and I am still waiting on the doctor's report to explore the option of a stationary chair.

I am unable to explore the option below further as you became unwell before you had to leave the offices and were unable to work due to being unwell.

Think you felt unwell from after 13h00 if I am correct.

Please load half day unplanned leave on Oracle as discussed.

Kind Regards



Mary-Ann Jones

Team Leader: GEMS Active Disease Risk Management

- ☎ (021) 466 1191
- ✉ Mary-annj@medscheme.co.za
- 📍 37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709
- 🌐 www.medscheme.com

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From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Sent: Wednesday, May 7, 2025 3:23 PM
To: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>
Subject: Regarding the Unpaid Leave Policy

Dear Mary-Ann,

Thank you for the follow-up regarding my sick leave on 6 May 2025. I understand the company policy regarding sick leave taken later in the day requiring a half-day unpaid leave.

However, I am writing to respectfully express my concerns about applying for an additional four hours of unpaid leave at this time. As you know, I already have three and a half hours of unpaid leave accrued, which will significantly impact my salary this month. Adding another four hours, especially considering I left the premises at 14:30, shortly after becoming unwell at work as you witnessed, feels like a particularly heavy financial burden.

While I am not disputing the need for leave due to my illness, the current situation presents a challenge for me. Given that HR has indicated that staggering the hours is not an option, and the possibility of working back those two hours also isn't available, accumulating further unpaid leave this month creates a difficult financial situation.

I feel that being penalized with a full half-day of unpaid leave when I was genuinely unwell at work and left shortly after becoming so feels quite harsh.

I would be grateful if we could explore any other potential avenues in this situation. Perhaps there might be an alternative way to account for the time, considering the circumstances of my sudden illness while at work.

Thank you for your understanding and willingness to discuss this further.

Regards,



Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw,Psych,Comm))

Care coordinator: GEMS Active Disease Risk Management

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----- Forwarded message -----

From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Shantal Govender <Shantal.Govender@medscheme.co.za>, Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>

Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>

Bcc:

Date: Thu, 25 Sep 2025 11:01:39 +0000

Subject: RE: Request to leave office

Dear Team,

I will rather have to owe the time or work it back.

Thank you

Wilbur

From: Wilbur Matthee

Sent: Thursday, September 25, 2025 12:32 PM

To: Shantal Govender <Shantal.Govender@medscheme.co.za>; Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>

Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>

Subject: FW: Request to leave office

Dear team,

I have tried to remain focus and am unable to so I find myself unproductive during this situation.

Thank you for your support I will engage with EAP for further support.

Kind regards

Wilbur

From: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>

Sent: Thursday, September 25, 2025 12:20 PM

To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>; Shantal Govender <Shantal.Govender@medscheme.co.za>

Subject: RE: Request to leave office

Hi Wilbur

I am currently in a meeting, and you need to speak to the TL available on the floor.

I will read your email once done.

@[Shantal Govender](#) please engage Wilbur; I am currently in a meeting.

Kind Regards

Nthabiseng

From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Sent: Thursday, September 25, 2025 12:15 PM

To: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>

Subject: Request to leave office

Importance: High

Dear Nthabiseng,

I am writing to urgently request permission to leave the office for the remainder of the day. The incident I reported earlier has left me feeling deeply embarrassed and emotionally overwhelmed. Despite efforts to step away and regain composure, I remain unable to focus or carry out my duties effectively.

Given the nature of the incident and its impact on my mental and emotional well-being, I respectfully request to be released immediately. I also ask that this time away not be deducted from my leave treated as unpaid leave given the circumstances leading to me feeling this way.

I plan to return to the office tomorrow in a better state to resume my responsibilities.

Thank you for your understanding and support.

Kind regards



Sr. Wilbur W. Matthee
(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw,Psych,Comm))
Care coordinator: GEMS Active Disease Risk Management

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39 attachments

- 50 percent deduction illegal.png**
135 KB
- actual reply on reporting MJ .png**
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- complaint outcomes.png**
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-  **Emailing Wilbur Matthee - letter to employer.pdf.eml**
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-  **Wilbur Matthee - letter to employer.pdf**
417 KB
-  **Formal Complaint: Handling of Harassment and Discrimination Case.eml**
24 KB
-  **formal complaint to hr and union.pdf**
1 MB
-  **July 2025 Salary dispute, No staggering, over 40%.eml**
61 KB
-  **July payslip 2025.pdf**
118 KB
-  **RE: Follow-Up on Formal Complaint and Meeting Outcome.eml**
71 KB
-  **RE: Regarding the Unpaid Leave Policy.eml**
119 KB
-  **RE: Request to leave office.eml**
66 KB
-  **RE: Unplanned Absenteeism.eml**
95 KB
-  **Wilbur Matthee - letter to employer.pdf**
420 KB
-  **email regarding initial insub general complain.pdf**
1,1 MB
-  **proposed resolution.pdf**
338 KB
-  **impact statement.pdf**
337 KB

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>

Sun, 07 Dec 2025 at 10:48

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Wilbur Matthee

-  **Urgent intervention required.eml**
20 KB

Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>
To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>, Gerald Van Wyk <Gerald.VanWyk@afrocentrichealth.com>, Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>, Andrew Schwulst <Andrew.Schwulst@medscheme.co.za>, Aklaaq Mahmood <aklaaqm@afrocentrichealth.com>
Cc: wilburmat@gmail.com <wilburmat@gmail.com>

Tue, 09 Dec 2025 at 10:48

Dear Wilbur,

Thank you for raising the below concerns with us , this mail serves to confirm receipt of your escalation.

While we get the urgency you're highlighting, please appreciate that your note is quite lengthy, with 32 attachments annexed to it, so please allow us sufficient time to investigate the matter comprehensively and give you feedback as soon as possible. With the festive break upon us, I can realistically say you will get interim feedback during January.

Regards,



Monwabisi Kula

Chief Risk Officer

Office: +27 11 671 6447 | Mobile: +27 72 690 2140

Monwabisi.Kula@afrocentrichealth.com

[37 Conrad St, Florida North, Roodepoort](#), 1709 | PO Box 1101, Florida Glen, 1709

www.afrocentric.za.com

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